

Neena Rani v. State of U.P.

Allahabad High Court · Division Bench · 29 November 2010 · Writ-C No. 67064 of 2010 · **Connection directed on Annexure 4.2 bond; third-party recall rejected.**

HEADNOTE

On the licensee's statement that supply would be given if the applicant furnished a bond in terms of Annexure 4.2 of the U.P. Electricity Supply Code, 2005, the writ was disposed of with a direction to release the connection within two weeks of a properly formatted bond. A later recall by a non-party claiming possession was refused: a pending title suit was left to the civil court, and the connection direction conferred no proprietary right on the consumer.

FACTUAL SUMMARY

Neena Rani petitioned the Allahabad High Court for an electricity connection from the Power Corporation. After two listings for instructions, counsel for the respondents stated that a connection would be given if she furnished a bond in terms of Annexure 4.2 of the Electricity Supply Code; she was willing. A non-party later applied to recall the disposal, claiming she was in possession and alleging connivance. She relied on a pending title suit against original allottee Ugrasen Jain, through whom the petitioner claimed ownership.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

indemnity bond as condition of new connection

HOLDING

On the licensee's statement, a new connection shall be released within two weeks of the applicant furnishing a bond in the proper format under Annexure 4.2 of the Supply Code. A later recall by a non-party claiming possession was refused: a pending title suit against the original allottee was not decided, and the connection direction did not itself confer any right on the consumer. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE TO AND POSSESSION OF THE PREMISES

Applicant's title suit against original allottee Ugrasen Jain left to the civil court; the connection order confers no proprietary right.

¶ 2-3